

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: MARQUEZ, LEONARD E
HEARING DATE: 08/31/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHhldz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHhldz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00090
CASE NAME: GUTHRIE VS. NICHOLAS
LEAVE TO FILE SECOND AMENDED COMPLAINT
FILED BY: NICHOLAS, SHAY
TENTATIVE RULING:

Defendant and plaintiff* Shay Nicholas ("Dr. Nicholas") filed a motion on June 26, 2026 seeking leave to file a second amended complaint in these consolidated cases (the "Motion for Leave to Amend"). The Motion for Leave to Amend was initially set for hearing on November 9, 2026. The Court later advanced the hearing date to August 31, 2026.

*Although denominated as a "cross-complainant" on the caption of the moving papers, Dr. Nicholas is the plaintiff in the consolidated Case No. C23-00394.

Background and Analysis

No opposition was filed. However, the opposing parties filed a Notice of Conditional Non-Opposition to Motion to Amend on August 18, 2026. The paper does not oppose leave but indicates that they “will assert challenges to some or all of the new claims in the proposed amended cross-complaint if leave to amend is granted.”

Disposition

The Court finds and orders as follows:

1. The Motion for Leave to Amend is GRANTED.
2. Dr. Nicholas’ second amended complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
3. The defendants may file a responsive pleading in accordance with all applicable law.
4. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C24-02590
CASE NAME: NEXTGEAR CAPITAL, INC. VS. FARHAD AMINZADA
ATTORNEYS FEES AND COSTS
FILED BY: NEXTGEAR CAPITAL, INC.
TENTATIVE RULING:

Plaintiff NextGear Capital, Inc. (“Plaintiff”) filed a Motion for Attorneys Fees on April 13, 2026 (the “Motion for Fees and Costs”). Plaintiff seeks an award of \$56,460.00 in attorneys’ fees plus \$17,580.72 in costs, not inclusive of any further fees incurred on this motion, as against defendants US City Auto Inc. and Farhad Aminzada (“Defendants”). The Motion for Fees and Costs was set for hearing on August 31, 2026. The motion is opposed.

Background

This matter was resolved by way of the granting of a Motion for Summary Adjudication as against Defendants as to the first, second, third and fifth causes of action, and awarded a judgment in favor of Plaintiff in the amount of \$1,488,052.52, as against both Defendants. See Declaration of Tom R. Normandin filed April 13, 2026 as part of the Motion for Fees and Costs (“Normandin Decl.”) ¶14; see also Minute Order dated April 2, 2026 (regarding February 23, 2026 hearing granting Summary Adjudication). The Court did not adjudicate the fourth cause of action for Conversion. See Minute Order dated April 2, 2026.

Analysis

No opposition has been filed and a Notice of Non-Opposition was filed by the moving party on August 26, 2026.

While the motion is not opposed, the Court concludes that it is not ripe. The fourth cause of action for Conversion has not been adjudicated and remains pending. No judgment has been entered. See Rule 3.1702 of the California Rules of Court (CRC); *Chen v. Valstock Ventures, LLC* (2022) 81 Cal.App.5th 957 (a trial court may not grant attorney’s fees to the party prevailing on a claim resolved on summary adjudication when other claims remain).